

25STCV03731 25STCV03731

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 25STCV03731 Hearing Date: September 2, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

WORKNET, INC.,

Plaintiff,

vs.

ROIC CALIFORNIA, LLC,

Defendant.

Case No.:

25STCV03731

Hearing Date:

September 2, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT ROIC CALIFORNIA, LLC'S MOTION
TO STRIKE PLAINTIFF'S COMPLAINT

Background

On October 15, 2025, Plaintiff WorkNet, Inc. ("WorkNet") filed this action against Defendant ROIC California, LLC ("Defendant"), alleging seven causes of action for (1) fraudulent inducement, (2) fraud - intentional misrepresentation, (3) fraud - negligent misrepresentation, (4) fraud - concealment, (5) breach of written contract, (6) breach of oral contract, and (7) restitution based on unjust enrichment.

Defendant now moves to strike WorkNet's Complaint in its entirety. WorkNet did not file an opposition.

Legal Standard

A

court may "[s]trikeout any irrelevant, false, or improper matter inserted in any pleading" or "[s]trike out all or any part of any pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Cal. Code Civ. Proc., § 436, subds.

(a)-(b) Cal. Code Civ. Proc., § 437. The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Cal. Code Civ. Proc., § 437.)

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action." ((Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175, internal quotations omitted.)

Discussion

Defendant moves to strike WorkNet's

Complaint in its entirety. Defendant explains that the "[m]otion is made on the grounds that Plaintiff is a corporation and has, since December 2025, failed to appear in this action through legal counsel as required by California law. A corporation cannot appear in propria persona or through unlicensed representatives in California courts." (Notice of Mot., 1:27-2:2; see *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 730 ["A corporation cannot in fact appear in court except through an agent... The qualifications of the human representing a corporation or for that matter any other person or entity in court is one of vital judicial concern. Such person is clearly engaged in the practice of law in a representative capacity. The practice of law 'is the doing and performing services in a court of justice, in any matter depending therein through its various stages . . . '"]. (Italics in original.)

Defendant asserts that "Plaintiff received notice of the Court's order relieving its counsel in January 2026, seven months ago. (Merino Decl., ¶ 4.) The Court also provided Plaintiff notice of its failure to appear at a case management conference on June 2, 2026. (Id., ¶ 5.) Plaintiff also has failed to respond to Defendant, including failure to respond to Defendant's letter asserting that it intended to seek dismissal of this case via motion. (Id., ¶ 6). CCP section 436(b) authorizes the court to strike any pleading 'not drawn or filed in conformity with the laws of this state.' CCP § 436. Here, striking Plaintiff's Complaint is appropriate because it does not have counsel of record despite receiving notice of the Order Relieving Plaintiff's Counsel seven months ago." (Mot., 2:8-17.)

As Defendant noted above, WorkNet failed to appear at the Case Management Conference on June 2, 2026. The Court's Minute Order states that "[t]here is no appearance by or for the Plaintiff nor any communication with the Court as to why there are no appearances this date." (Minute Order 6/2/26.) The Court set an "Order to Show Cause Re: Why the Court should not impose \$250.00 in sanctions for Plaintiff's failure to appear on 6/2/26 ... for 09/29/26." (Ibid.) Accordingly, as Defendant contends in the instant motion, it appears that WorkNet is no longer participating in litigation. WorkNet failed to obtain new counsel, failed to attend the June 6, 2026 Case Management Conference, failed to communicate with or respond to Defendant, and failed to communicate with the Court. WorkNet is a corporation and a corporation cannot proceed as a

self-represented litigant. ((See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284, fn. 5
[“The ban on corporate self-representation does not prevent a court from
granting a motion to withdraw as attorney of record, even if it leaves the
corporation without representation. Such an order puts pressure on the
corporation to obtain new counsel, or risk forfeiting important rights through
nonrepresentation.”].) Based on the foregoing, and in light of
WorkNet’s failure to file an opposition or make a concerted effort to engage in
litigation, the Court finds that striking the Complaint as not being drawn in
conformity with the law is appropriate. Thus, the Court grants Defendant’s
motion.

Conclusion

Based on the foregoing, Defendant’s motion
to strike the Complaint is GRANTED. Defendant is ordered to file
and serve a proposed judgment of dismissal within 10 days of the date of this
Order. Defendant is ordered to give notice of this Order.

DATED: September
2, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court